



कर्मचारी भविष्य निधि संगठन

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066

Bhavishya Nidhi Bhawan, 14, Bhikaji Cama Place, New Delhi - 110 066.

Through Web Circulation

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Date:- 21.10.2015

23 OCT 2015

To

All Addl. Central P.F Commissioner (Zone)
All Regional P.F Commissioners
Regional Offices/Sub-Regional Offices

Subject: - Filing of Counter affidavits/Written Statement in the cases under EPF & MP Act, 1952- regarding.

Sir,

It has been experienced that in a number of cases Central Provident Fund Commissioner and/or Union of India are impleaded as respondents. In some cases UOI/CPFC are proforma respondents while in others although UOI is not a proforma respondent, action lies on the part of EPFO.

2. In this regard, instructions have already been circulated from Head Office vide circular dated 22.05.2014 and 19.12.2014 on the basis of directions given by Ministry from time to time, for deletion of the name of CPFC/UOI in the cases where they are impleaded as proforma respondents. However it is observed that the above circulars are not being followed in true spirit by field offices. Ministry has also observed the same.

3. Ministry has once again requested EPFO, vide its letter No. S-35018/8/2015-SS.II dated 21.08.2015, to ensure the immediate filing of counter affidavit/written statement before the Hon'ble Court in such cases wherein UOI, Secretary (MOL&E) are respondents and action is required to be taken by EPFO.

4. In view of the above, it is requested to ensure the filing of counter affidavits/written statement before the Hon'ble Court wherein Union of India, Secretary (MOL&E) & Ors. are respondents, and where action is required to be taken by EPFO.

5. It is further requested to strictly follow these instructions/guidelines in true spirit while handling the court cases in different legal fora.

Yours faithfully,

(M.P.Varghese)

Addl. Central P.F Commissioner-I(Legal)

21/10/15